

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, August 3, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
24-CLJ-07152	SHAWNA NIROUMAND VS. COSTCO WHOLESALE CORPORATION
LINE 1	
SHAWNA NIROUMAND	PRO PER
COSTCO WHOLESALE	NATHANIEL L. DUNN

PLAINTIFF: SHAWNA NIROUMAND'S MOTION FOR A NEW TRIAL

TENTATIVE RULING:

Plaintiff Shawna Niroumand's Motion for a New Trial is DENIED, as follows:

Defendant's objections to exhibits A, B, C, and E to Plaintiff's declaration in support of her Motion are SUSTAINED.

A motion for a new trial is appropriate following an order granting summary judgment. (Code Civ. Proc. section 687; *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 868.) In this case, Defendant moved for summary judgment and the initial hearing was continued for discovery to be done. (December 15, 2025 Minute Order.) The continued hearing was held on June 8, 2026, at which time no additional documents had been filed with respect to the motion, and Defendant's Motion for Summary Judgment was granted. (June 8, 2026 Minute Order.) Plaintiff here argues that the summary judgment should be vacated and a new trial should be granted pursuant to Code Civ. Proc. section 657 based on accident or surprise which ordinary prudence could not guard against, newly discovered evidence, insufficiency of the evidence to justify the Court's ruling, error in law, and inadequate damages.

Accident or Surprise

A decision may be modified or vacated based on accident or surprise, which ordinary prudence could not have guarded against. (Code Civ. Proc. section 657 subd. (3).) Plaintiff argues that "the Appellate Court Clerk" had promised to transmit case notifications relating to Plaintiff's writ of mandate electronically, and that "[t]he total absence of the promised electronic notification, coupled with the anomalous late arrival of physical mail on May 21, 2026, created an unforeseen procedural trap that cut off Plaintiff's ability to timely act." (Motion at p. 2:10-13, 3:8-10.) However, Plaintiff has not presented admissible evidence that she was unable to provide in opposition to Defendant's Motion for Summary Judgment. She also has not shown that she took any steps to obtain discovery between the December 15, 2025 continuance and the June 8, 2026 hearing. Instead, she argues here that she did not request a continuance of the Motion for Summary Judgment, despite her Opposition filed November 19, 2025 stating "...based on all the above and Code of Civil Procedure Section 437c, Subdivision (h), motion for Summary Judgement of the Defendant should either be denied or offer the plaintiff continuance in order to obtain discovery." (Plaintiff's November 19, 2025 "Opposition to Summary Judgment Filed by the Defendant's Lawyer" at p. 2:18-20.)

Most important, the Minute Order from the December 15, 2026 Hearing where Plaintiff's request for a continuance of the Motion for Summary Judgment was granted clearly indicates that Plaintiff was present and had actual notice of June 8, 2026 Hearing, which is further supported by the fact that she actually

appeared on June 8, 2026. She therefore has not demonstrated accident or surprise which ordinary prudence could not have guarded against.

Newly Discovered Evidence

A decision may be modified or vacated based on newly discovered evidence, material for the party making the application, which the party could not, with reasonable diligence, have discovered and produced at the trial. (Code Civ. Proc. section 657 subd. (4).) Here, Plaintiff has presented no admissible evidence which substantiates Defendant Costco's liability, as she argues. (See Motion at p. 3:13-15.) Not only is the evidence she presented inadmissible (and also likely a sham inconsistent with her deposition testimony), it also was available to her long before the Motion was Summary Judgment was granted.

Insufficiency of Evidence

A decision may be modified or vacated based on insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. (Code Civ. Proc. section 657 subd. (6).) Plaintiff argues that the evidence before the Court on summary judgment was insufficient for Defendant Costco to meet its initial burden of production. (Motion at p. 3:19-23.) The Court's decision was properly based on admissible evidence provided in declarations. Plaintiff has not shown that the evidence was insufficient.

Error in Law

A decision may be modified or vacated based on "[e]rror in law, occurring at the trial and excepted to by the party making the application." (Code Civ. Proc. section 657 subd. (7).) Plaintiff argues that "[t]he Court committed a reversible error in law by adopting the summary judgment order, failing to account for the procedural prejudice suffered by the self-represented Plaintiff, and denying Plaintiff her constitutional right to a trial on the merits." (Motion at p. 3:26-28.) Plaintiff has not demonstrated any procedural prejudice, and the Motion for Summary Judgment was properly granted.

Excessive or inadequate damages

Plaintiff's final argument is that she was insufficiently compensated in the action as a result of the granting of summary judgment in Defendant's favor, pointing to Code Civ. Proc. section 657 subd. (5) which allows a decision to be vacated based on excessive or inadequate damages. This subsection is not properly applied where Defendant is the prevailing party and Plaintiff is not entitled to damages in any amount.

Plaintiff has not demonstrated a statutory basis to vacate or modify the judgment entered following Defendant's Motion for Summary Judgment, and the Motion is accordingly DENIED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 2

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

GEOFFREY WM. STEELE'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motions of Geoffrey Wm. Steele to be relieved as counsel of record for defendants is denied without prejudice. Counsel has not provided a declaration indicating that the service address is current as required by California Rules of Court, rule 3.1362(d). The Steele declarations state that defendants were served by mail at their last known address. But, the stated method of confirming how the address is current, is confused and circular. The declaration checks the "other" box [3(b)(1)(d)], and then writes "Client has been served via electronic mail and at their last known address". That is not confirmation that either address is current as required by the rule.

It is also noted that there is a pending motion to compel in the case calendared for August 10 that Defendant has not responded to. While the Court acknowledges that this motion was filed a long time ago and that the motion to compel was filed after, it would appear that relieving counsel a week before the motion hearing with no indication that Defendants are aware of that hearing would be unfairly prejudicial.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

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02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 3

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

GEOFFREY WM. STEELE'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The tentative ruling for Line 2 is hereby incorporated by reference and serves at the tentative for Line 3.

02:00 PM

26-CIV-01347 MARSH & MCLENNAN AGENCY LLC VS. ELMER "RICK" FERGUSON
LINE 4

MARSH & MCLENNAN AGENCY LLC
ELMER "RICK" FERGUSON

BENJAMIN A. EMMERT
PRO PER

PETITIONER: MARSH & MCLENNAN AGENCY LLC'S MOTION FOR AN UNDERTAKING BY DEFENDANT PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE SECTION 1710.50

TENTATIVE RULING:

For the reasons stated below, Plaintiff/Judgment Creditor Marsh & McLennon Agency, LLC's ("MMA") "Motion for an Undertaking by Defendant Pursuant to [CCP] Sect. 1710.50," filed July 21, 2026, is DENIED pending the outcome of the Nov. 16, 2026 hearing on Judgment Debtor Ferguson's motion to vacate entry of the judgment.

The Court HEREBY EXTENDS THE STAY OF ENFORCEMENT issued on July 15, 2026 to Nov. 16, 2026.

On Feb. 24, 2026, Plaintiff/Judgment Creditor MMA filed this case to domesticate a July 1, 2025 money judgment in favor of MMA, and against Defendant/Judgment Debtor Ferguson, issued by U.S. District Court for the Southern District of New York. On May 18, 2026, Mr. Ferguson filed a motion seeking to vacate entry of the judgment, arguing it was procedurally incorrect to use procedures for domesticating a "sister-state" judgment for a judgment issued by a federal district court. Ferguson's initial motion Court denied it on procedural grounds. (June 29, 2026 Order.) On July 8, 2026, Ferguson filed a second motion to vacate entry of the judgment, which is set for hearing on Nov. 16, 2026.

On July 15, 2026, the Court granted Mr. Ferguson's *ex parte* application to stay enforcement of the judgment until at least Aug. 3, 2026. On July 21, 2026, MMA filed the present motion, seeking an order requiring Mr. Ferguson to post a bond/undertaking, pending resolution of Ferguson's appeal of the underlying SDNY judgment to the Second Circuit Court of Appeals.

Under Code Civ. Proc. § 1710.10 *et. seq.*, the Court has discretion as to whether to require an undertaking. The Court entered the judgment in this case based on a purported "sister-state" judgment, pursuant to Code Civ. Proc. § 1710.10 *et. seq.* Accordingly, this Motion is governed by Code Civ. Proc. § 1710.50, which grants this Court the *discretion* to require Mr. Ferguson (the judgment debtor) to post an undertaking pending the resolution of his appeal to the Second Circuit. See § 1710.50(c)(1) ("The court *may* require an undertaking in an amount it determines to be just ..." [emphasis added].)

MMA's use of Code Civ. Proc. § 1710.10 *et. seq.*'s procedures to domesticate a federal court judgment may have been improper. Since the underlying judgment here was issued by a federal court, § 1710.10 *et. seq.*'s procedures for domesticating "sister-state" judgments may not have been the proper procedural mechanism to domesticate the SDNY judgment. § 1710.10(c) states:

As used in this chapter: ...

(c) “Sister state judgment” means that part of any judgment, decree, or order of a court of a state of the United States, other than California, which requires the payment of money, but does not include a support order as defined in Section 155 of the Family Code.

LAW REVISION COMMISSION COMMENTS

Subdivision (c) is based on Section 1 of the revised Uniform Enforcement of Foreign Judgments Act of 1964. 9A Uniform Laws Ann. 488 (1965). However, unlike the Uniform Act which applies to all state and federal judgments entitled to full faith and credit, Section 1710.10(c) applies only to judgments of sister state courts which require the payment of money. ...

(emphasis added.) See also *Enforcing Sister State Judgments in California*; *Cal. Prac. Guide Enf. J. & Debt* Ch. 6J-2, stating:

A sister state judgment cannot be enforced in California until it is ‘domesticated’ (or registered) as a California judgment in accordance with applicable law—generally, pursuant to the Sister State Money-Judgments Act or by bringing an action to establish the judgment in California.

(1) Scope of Act

[6:1802.1] Not applicable to federal court judgments: The SSMJA does *not* apply to federal court judgments. [See CCP § 1710.10(c) and Comment thereto; compare *Richard A. Viguerie Co., Inc. v. Noble* (1980) 101 CA3d 62, 64, 161 CR 435, 436—D.C. superior court judgments constitute sister-state judgments entitled to entry in California under SSMJA]

(Instead, nearly all federal court judgments are enforceable by registration in a California federal district; see ¶ 6:1848 *ff.*)

Mr. Ferguson has filed a (second) motion to vacate this Court’s entry of the “sister-state” judgment, which is set for a hearing on Nov. 16, 2026. The ruling on that motion may impact the merits of requiring an undertaking.

MMA was advised to brief this question (the applicability of the Sister State Money Judgment Act) in the Court’s July 15, 2026 Order but has declined to brief its merits.

MMA has instead argued that Mr. Ferguson missed his statutory deadline to file a motion to vacate, because he did not file his initial Motion to Vacate Entry of Sister-State Judgment (which was denied on procedural grounds) until May 18, 2026. *The Rutter Group: Enforcement of Judgments*, states:

[6:1830] Vacating the judgment: The judgment debtor has 30 days following *service* of the notice of entry of judgment to move to vacate the judgment (but equitable relief may be available after this deadline expires). [CCP § 1710.40(b) and Comment thereto; see *Casey v. Hill* (2022) 79 CA5th 937, 960]

The Court has not yet ruled on this timeliness issue. But it does note that the docket reflects the fact that Mr. Ferguson did attempt to file his motion in a timely manner. He attempted to file the motion on March 23, 2026 but it was rejected for technical reasons, primarily because he did not include a case

number (his pleading specifically indicated he didn't know the case number). He attempted to file it again on April 28, 2026 but it was rejected due to a failure to pay a fee.

In exercising its discretion not to require an undertaking at this time, the Court considered that, based on the history and nature of this judgment, that an appeal is unlikely to be successful and that ultimately the judgment is likely going to be enforceable by some procedure. The Court also considered MMA's concern about Mr. Ferguson "attempt[ing] to conceal or transfer assets". However, as to that concern, MMA offers no evidence and Mr. Ferguson has lodged with the Court evidence of his current assets with a declaration signed under penalty of perjury. The Court has also considered the policies underlying Code of Civil Procedure Section 917.1 even though it concededly does not apply here. But, ultimately, the Court's concern regarding MMA's use of what appears to be an inapplicable procedure to enforce its judgment weighs more heavily against requiring an undertaking at this time.

In light of the foregoing, MMA's motion for an order requiring Mr. Ferguson to post an undertaking is DENIED, pending the outcome of the Nov. 16, 2026 hearing on Judgment Debtor Ferguson's motion to vacate entry of the judgment.

The Court HEREBY EXTENDS THE STAY OF ENFORCEMENT issued on July 15, 2026 to Nov. 16, 2026.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CIV-03505 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY, ET AL.

LINE 5

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO PER
BRIAN A. BARNHORST

DEFENDANTS NIAMBI LINCOLN AND FIDEL ALAS'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

TENTATIVE RULING:

Nominal Defendant Niambi Lincoln's motion for an order quashing service of the summons and complaint by Plaintiff Shannon Pekary is DENIED.

This case concerns the validity of Defendant Palo Alto Park Mutual Water Company's December 2025 election. Plaintiff brought the underlying action pursuant to Corporations Code section 7616 requesting the Court confirm the validity of the Palo Alto Park Mutual Water Company's December 20, 2025, election of directors. The complaint names Palo Alto Park Mutual Water Company as the corporate defendant and names movant of the instant motion, Niambi Lincoln, as a nominal defendant.

In the instant motion, Ms. Lincoln specially appears to challenge service of the summons and complaint as legally defective because service was via substituted service upon an unidentified Jane Doe and there is not completed statutory mailing because the date and place are blank on the form. Plaintiff, appearing pro se, opposes and contends that the service record indicates several attempts at personal service before posting the documents to Lincoln's front door and mailing them to her work and home addresses. Service was proper under the service provision in Corporations Code section 7616, subdivision (c).

A court gains jurisdiction over a defendant from the time the defendant is served with a copy of the summons and the complaint on which it is based as required under the Code of Civil Procedure. (Code Civ. Proc. §§ 410.50, 412.20.) A motion to quash is utilized by a defendant who makes a special appearance for the narrow purpose of contesting personal jurisdiction. (2 Witkin, Cal. Procedure (6th ed. 2026 March Update) Jurisdiction, § 231.) As argued by movant, the service of a substantially defective summons does not confer jurisdiction over a party. (*Greene v. Municipal Court* (1975) 51 Cal. App. 3d 446, 451.) The questions presented to the Court in this motion is whether the summons and its service are defective such that the summons did not confer this Court's jurisdiction over Ms. Lincoln.

As was said in *Donel, Inc. v. Badalian* (1978) 87 Cal.App.3d 327, 333, a case centering upon service by publication, "[n]o single formula nor mode of search can be said to constitute due diligence in every case." (Id. at 333.) After having read and considered both parties' positions and the proofs of service from appended to the declarations of Ms. Lincoln and plaintiff, the Court finds that plaintiff substantially complied with this Court's May 11, 2026 order which ordered plaintiff to "make best efforts" to personally serve [Ms. Lincoln]. (Declaration of Shannon Pekary iso Opposition to Motion to Quash, filed June 5, 2026, Ex. A.) Here, plaintiff hired registered process servers and the declarations of due diligence from them both, Donald Kaul and Scott Feely, demonstrate that a total of four attempts at personal service were made before posting and mailing to Ms. Lincoln, see *infra*:

- May 12, 2026, 3:25 p.m. Ms. Lincoln's Dumbarton home address (Feely)
-

- May 12, 2026, 8:05 p.m. Ms. Lincoln's Dumbarton home address (Kaul)
- May 13, 2025, 11:15 a.m. Ms. Lincoln's Dumbarton home address (Feely)
- May 13, 2026, 7:50 p.m. Ms. Lincoln's Dumbarton home address (Kaul)
- May 15, 2026, 9:35 a.m. POSTED at Ms. Lincoln's Dumbarton home address (Kaul)

(Lincoln Decl., Ex. 2- Declaration of Service by Posting by Donald Kaul, photos of posting & Kaul Declaration of Reasonable Diligence; Pekary Decl. Ex. B- Feely Declaration of Reasonable Diligence, Ex. C- registered mail receipts.)

Thus, the Court finds Plaintiff complied with the Court's order that "In the event that a registered process server is unable to effectuate persona service after three attempts, Plaintiff is permitted to effectuate service by having a registered process server leave a copy of the complaint, summons and a copy of this Order at the front door of defendant Corporation headquarters and the home of each defendant Director ... and send copies by registered mail." (Pekary Decl. Ex. A.) Accordingly, Ms. Lincoln's motion to quash is DENIED.

Ms. Lincoln shall file an answer within ten (10) days of entry of this order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
MONDAY, AUGUST 03, 2026**

02:00 PM

26-UDL-00636 ZIJING LIU VS. STEPHEN F. POWELL

LINE 6

ZIJING LIU

PRO PER

STEPHEN F. POWELL

PRO PER

DEFENDANT: STEPHEN POWELL'S MOTION TO SUSPEND SHERIFF'S JULY 7, 2026 NOTICE TO VACATE

TENTATIVE RULING:

The Motion to Suspend Sheriff's July 7, 2026 Notice to Vacate by Defendant Stephen F. Powell is DENIED as moot. The sheriff returned possession of the property to Plaintiff on July 7, 2026. (See Return on Writ of Possession filed July 22, 2026.)

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

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POSTED: 3:00 PM